

Wild Life (Transactions and Taxidermy) Rules, 2024

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Union of India - Act

Wild Life (Transactions and Taxidermy) Rules, 2024

UNION OF INDIA

India

Wild Life (Transactions and Taxidermy) Rules, 2024

Rule G-S-R-47-E of 2024

Published on 6 February 2024

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In exercise of the powers conferred by clause (j) of sub-section (1) of Section 63 of the Wild Life (Protection) Act, 1972 (53 of 1972) and in supersession of the Wild Life (Transactions and Taxidermy) Rules, 1973, the Central Government hereby makes the following rules, namely: -

1.

Short title and commencement.

(1) These rules may be called the Wild Life (Transactions and Taxidermy) Rules, 2024.

(2) They shall come into force on the date of their publication in the Official Gazette.

2.

Definition.

In these rules unless the context otherwise requires, -

(a)

"Act"

means the Wild Life (Protection) Act, 1972 (53 of 1972);

(b)

"Form"

means a form appended to these rules;

(c)

"Chief Wild Life Warden"

includes any other officer which the State Government may, for the purposes of these rules, by notification in the Official Gazette, appoint;

(d)

"Licensee"

means a licensee under Chapter V of the Act;

(e)

"specified animal"

means any animal which is specified in Schedule I to the Act and which is-captured or kept or bred in captivity, or found wild in nature.

3.

Acquiring, receiving or keeping specified animal, in control, custody or possession or put under process of taxidermy or make article, etc.

(1) No licensee shall -

(i) acquire, receive, keep in his control, custody or possession any specified animal or any animal article, trophy, uncured trophy or meat derived therefrom; or

(ii) put under a process of taxidermy or make animal article containing part or whole of such animal, except with the previous permission of the authorised officer.

(2) Every application for such permission shall be made in Form I.

(3) On receipt of an application made under sub-rule (2), the Chief Wild Life Warden, may, after making such inquiry as he may think fit and within a period of fifteen days from the date of receipt of the application, either grant or refuse the permission;

Provided that no such permission shall be granted unless the Chief Wild Life Warden is satisfied that the specified animal or animal article, trophy, uncured trophy or meat, referred to in sub-rule (1), has been lawfully acquired.

(4) Where the Chief Wild Life Warden refuses to grant the permission, he shall record the reasons for so doing and a copy of the reasons so recorded shall be communicated to the licensee applying for the permission.

(5) Every permission granted under sub-rule (3) shall be in Form II.

4.

Submission of report of stocks.

(1) Every licensee to whom permission has been granted under sub-rule (3) of rule 3 shall submit, to the Chief Wild Life Warden who had granted the said permission, report regarding the stocks of specified animal or animal article, trophy, uncured trophy or meat, referred to in sub-rule (1) of rule 3, in Form III within a period of seven days of the acquisition, receipt or keeping of the same in his control, custody or possession.

(2) The Chief Wild Life Warden, after receiving such report may arrange to affix identification marks on such stocks.

5.

Sale of specified animal, etc.

(1) No licensed dealer shall sell or offer for sale any specified animal or any animal article, trophy or uncured trophy derived therefrom, except to a person authorised to purchase by a permission granted by the Chief Wild Life Warden and where the sale is effected, the purchaser shall surrender the permission to the licensed dealer.

(2) Every application for permission to purchase shall be made in Form IV.

(3) On receipt of an application made under sub-rule (2), the Officer may, after making such inquiry as he may think fit and within a period of ten days from the date of receipt of the application, either grant or refuse the permission.

(4) Where the Chief Wild Life Warden refuses to grant the permission, he shall record the reason for so doing and a copy of the reasons so recorded shall be communicated to the person applying for the permission.

(5) Every permission granted under sub-rule (3) shall be in Form V.

(6) Every permission granted under sub-rule (3) shall be valid up to a period one month from the date of issue of the same.

(7) Every licensed dealer, at the time of each sale, issue a voucher in relation to the specified animal or animal article, trophy or uncured trophy, referred to in sub-rule (1), to the person authorised to purchase.

(8) Each voucher shall contain the following particulars, namely:-

- a. date of issue of voucher;
- b. the amount of price realised or to be realised;
- c. name and address of the licensed dealer issuing the voucher;
- d. name and address of the person to whom the voucher is issued;
- e. permission number of the person authorised to purchase;
- f. description of the specified animal or animal article or trophy or uncured trophy derived therefrom and number;
- g. whether such specified animal/animal article or trophy or uncured trophy was required to be declared under section 44 of the Wild Life (Protection) Act 1972 (53 of 1972), and if so, whether it has been declared;
- h. signature of the licensed dealer issuing the voucher;
- i. signature of the person to whom the voucher is issued.

6.

Taxidermy or making animal article.

(1) Every licensed taxidermist or licensed manufacturer shall, at the time of returning the trophy or animal article, issue a voucher to the owner of the said trophy or animal article.

(2) Each voucher shall contain the following particular, namely: -

- a. date of issue of voucher;
- b. charges realised or to be realised;
- c. name and address of the licensed taxidermist or manufacturer issuing the voucher;
- d. name and address of the person to whom the voucher is issued;
- e. description of the trophy or animal article and number;
- f. whether uncured trophy or trophy animal article was required to be declared under section 40, or section 44, of the Wild Life (Protection) Act, 1972 (53 of 1972) and if so, whether it has been declared;
- g. signature of the licensed taxidermist or manufacturer issuing the voucher.

7.

Maintenance of voucher.

(1) The voucher referred to in rules 5 or 6 shall be in triplicate and serially numbered.

(2) The duplicate and the triplicate copy of the voucher shall be retained by the licensed dealer, licensed taxidermist or licensed manufacturer and the original copy of the voucher shall be given to the person referred to in sub-rule (7) of rule 5 or sub-rule (1) of rule 6.

(3) Every book containing blank voucher shall be presented to the Chief Wild Life Warden for affixing his initials or stamps on such book before it is brought into use.

(4) Every licensed dealer, licensed taxidermist or licensed manufacturer shall send, in monthly batches not later than the seventh day of every month, the duplicate copies or vouchers retained by him, to the Chief Wild Life Warden.

(5) Every permission surrendered to a licensed dealer at the time of sale shall also be enclosed along with the duplicate copies aforesaid.

8. Transport of specified animal, etc.

- (1) No licensee shall transport from one place to another within the State any specified animal, animal article, trophy or uncured trophy derived therefrom, except with the previous permission of the Chief Wild Life Warden.

(2) Every application for such permission shall be made in Form VI.

(3) On receipt of an application made under sub-rule (2), the Chief Wild Life Warden may, after making such inquiry as he may think fit and within a period of seven days from the date of receipt of the application, either grant or refuse to grant the permissions;

Provided that no such permission shall be granted unless the Chief Wild Life Warden is satisfied that the specified animal or animal article, trophy or uncured trophy, referred to in sub-rule (1), has been lawfully acquired.

(4) Where the Chief Wild Life Warden refuses to grant the permission, he shall record the reasons for so doing and a copy of the reasons so recorded shall be communicated to the licensee applying for the permission.

(5) Every permission granted under sub-rule (3) shall be in Form VII.

9. Appeal.

- (1) Any person aggrieved by an order made by the Chief Wild Life Warden granting the permission under sub-rule (3) of 3, sub-rule (3) of rule 5 or sub-rule (3) of rule 8, may prefer an appeal to the State Government.

(2) No appeal shall be entertained unless it is preferred within fifteen days from the date of the communication to the applicant of the order appealed against:

Provided that the State Government may admit any appeal after the expiry of the period aforesaid, if it is satisfied that the appellant had sufficient cause for not preparing the appeal in time.

Form I

[See rule 3(2)]

Application for permission to acquire, receive, keep specified animal, animal article etc. or put under process of taxidermy or make animal article.

To,

The

Sir,

I,, residing at..... Taluk District..... and holding licence No. granted under sub-section (4) of section 44 of the Wild Life (Protection) Act, 1972 (53 of 1972), request that I may be granted permission to acquire/receive/keep in my control/custody/possession specified animal/animal article trophy/uncured trophy/meat derived from specified animal and or put under process of taxidermy/make animal article containing part/whole of such animal.

2. I furnish below the particulars in relation to such specified animal/animal article trophy/uncured trophy meat: -

1. Species of animal.

2. Number.

3. Description (including sex, if possible).

4. Source from which to be obtained, -

(i) Address and Licence Number, if any.

(ii) Whether declaration made/permission/licence obtained under sections 40, 43, or 44, of the Wild Life (Protection) Act, 1972 and if so the particulars:

5. Particulars of certificate of ownership.

6. Identification mark, if any.

7. Premises in which intended to be kept.

8. Purpose for which to be acquired/received/kept in control/custody/possession.

9. If to be put under process of taxidermy or to make animal articles -

a. Number of the trophies/articles to be made.

b. Description of such trophies/articles.

c. To whom they will be returned.

d. Probable date within which they will be so returned.

3. I hereby declare that to the best of my knowledge and belief the information furnished herein is true and complete.

Signature of the applicant

Strike out whichever is not applicable.

Form II

[See rule 5(5)]

Permission to acquire, receive, keep in control, custody or possession specified animal or animal article etc. or put under process of taxidermy or make animal article.

Shri, holding licence No. granted under sub-section (4) of section 44 of the Wild Life (Protection) Act, 1972 (53 of 1972), is hereby permitted to acquire, to keep under his control/custody/possessing specified animal/animal article/trophy/uncured trophy/meat derived from specified animal, of the following description, or put under process of taxidermy or make animal article containing part or whole of such animal:

1. Species of animal.

2. Description (including sex, if given in the application).

3. Number.
4. Source from which to be obtained.
5. Licence/Permission Number of the source from which to be obtained.
6. Particulars of certificate of ownership.
7. Identification mark, if any.
8. Premises in which to be kept.
9. Purpose for which to be acquire/receive/kept in control/custody/possession.
10. If permitted to put under process of taxidermy or to make animal article, -
 - a. Number of the trophies or articles to be made.
 - b. Description of such trophies or articles.
 - c. To whom they should be returned.
 - d. Probable date within which they would be returned.

Issued by me this day of

Signature of:

Designation :

Seal:

Place:

Date:

Strike out whichever is not applicable.

Form III

[See rule 4(1)]

Report of stocks

To,

The

1. Full name, address and licence number of the licensee.
2. Stock held on the date of report in specified animals.
 - (a) Species and sex.
 - (b) Number.
 - (c) Adult or Juvenile.
 - (d) Premises where kept.
3. Stock held on the date of report in animal articles.
 - (a) Description, including species of animal from which derived.
 - (b) Number.
 - (c) Dimension or weight.
 - (d) Premises where kept.
4. Stock held on the date of report in trophies.
 - (a) Description, including species of animal from which derived.
 - (b) Number.
 - (c) Dimension or weight.
 - (d) Premises where kept.
5. Stock held on the date of report in uncured trophies.
 - (a) Description, including species of animal from derived.
 - (b) Number.
 - (c) Dimension or weight.
 - (d) Premises where kept.
6. Remarks, if any.

I do hereby declare that the information given above is true to the best of my knowledge and belief.

Signature of the person making declaration

Place:

Date:

Strike out whichever is not applicable.

Form IV

[See rule 5(2)]

Application for permission to purchase specified animal etc.

To

The

Sir,

I/We residing at Taluk District request that I/We may be granted permission to purchase specified animal/animal article/trophy/uncured trophy derived from specified animal of the following description, from a licensee: -

1. Number and description of -

(a) specified animal,

(b) animal article,

(c) trophy,

(d) uncured trophy

2. Purpose for which the purchase is to be made.

3. I/We hereby declare that to the best of my/our knowledge and belief the information furnished herein is true and complete.

Signature(s) of the applicant(s)

Place:

Date:

Strike out whichever is not applicable.

Form V

[See rule 5(5)]

Permission to purchase specified animal, etc.

Shri of is/are hereby permitted to purchase specified animal/animal article/trophy/uncured trophy derived from specified animal of the following description from for the purpose of

Number and description of -

(a) specified animal,

(b) animal article,

(c) trophy,

(d) uncured trophy.

Issued by me this day of

Signature

Designation

Seal:

Place:

Date:

Note.

- This permission shall be valid upto a period of one month from the date of issue. Strike out whichever is not applicable.

Form VI

[See rule 8 (2)]

Application for permission to transport specified animal, etc.

To

The

Sir,

Iresiding at Taluk District and holding Licence No. granted under sub-section (4) of section 44 of the Wild Life (Protection) Act, 1972 (53 of 1972) request that I may be granted permission to transport the following: -

(1) Species of specified animal or from which the animal article/cured trophy/uncured trophy is derived.

(2) Number.

- (3) Description (including sex, if possible).
- (4) Identification mark, if any.
- (5) Source of procurement and the Licence/Permission Number.
- (6) Certificate of ownership, if any.
- (7) Mode of Transport.
- (8) Route
- (9) Period required for transport.
- (10) Destination.

I hereby declare that to the best of my knowledge and belief the information furnished herein is true and complete.

Signature of the applicant.

Place:

Date:

Strike out whichever is not applicable.

Form VII

[See rule 8 (5)]

Permission to transport specified animal, etc.

Shri holding licence No. granted under sub-section (4) of section 44 of the Wild Life (Protection) Act, 1972 (53 of 1972) is hereby permitted to transport in the manner prescribed below specified animal/animal article/cured trophy/uncured trophy derived from specified animal, from to.....

(i) Mode of transport.

(ii) Route.

(iii) Period allowed for transport.

(iv) Remarks.

Issued by me this day of

Signature

Designation

Seal:

Place:

Date:

Strike out whichever is not applicable.

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